

One of the most important functions of your will is to identify whom you'd like to have raise your kids in the unlikely event that you can't. Name one person to act as guardian for each of your kids and one alternate guardian in case the first choice can't serve. If you name coguardians, such as your sister and her husband, and they split up, they could fight for guardianship. If it's your intention that your sister act as guardian, name her alone. You can name different guardians for each of your kids. For instance, if you have kids by two different spouses, you may want them to be taken care of by two different guardians. Talk to the person you want to name as guardian and make sure he or she is willing and able to do the job.

Is It Necessary to Use a Lawyer?

Although there are many software programs available for do-it-yourself wills, you must bear in mind that a last will and testament is a very formal legal document that must be drafted and executed in accordance with strict legal requirements if the will is to be declared valid by the state upon probate. Probate is the legal process of proving that the will is truly the last wishes of someone who is no longer living. Not using someone who is knowledgeable in this area could prove to be penny-wise and dollar-foolish in the long run.



Should you be the adventurous type, Quicken WillMaker replaces the popular WillMaker software program created by Nolo, and adds the ability to generate living wills, financial powers of attorney, and many other legal documents. The software is available at office supply stores or from [Nolo.com](http://www.nolo.com) (www.nolo.com) for around \$50.

The Legal Requirements for Signing a Will